FLOCK: SYNERGY vs. SLAVITUDE

The Architecture of Thought, Constitutional Liberty, and the Responsibility of Leadership

An Open Letter to the Columbia County Board of Supervisors and the Public

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I. The Silent Contract

To the Members of the Board: How much freedom are we willing to surrender in the name of protecting it? When did we decide that surrender was necessary? An officer who sees a car pass on a public road witnesses a moment. A system that records time-stamped vehicle sightings, and makes those sightings searchable, can preserve fragments of movement for later reconstruction. Its actual reach depends on cameras, retention, permissions and sharing. The distinction deserves examination even where a particular search remains lawful. The availability of a tool does not prove its necessity. Before accepting another layer of surveillance as the answer, we should ask what causes the harms we seek to prevent, which interventions demonstrably work, and what freedoms we are willing to place at risk. A society can become extraordinarily proficient at watching its problems without becoming any better at solving them.

II. From Surveillance to Governance

Flock's 14-point presentation offers a framework for discussing surveillance technology with local governments. But the deeper question is not simply how that technology is presented to the public. It is whether the proposed system is necessary, proportionate, accountable, and consistent with the constitutional liberties it is supposed to protect. Flock Safety produced a 14-page law-enforcement guide, How to Speak to City Councils About Public Safety Technology: Building Trust, Demonstrating Accountability, and Preparing for Tough Questions. Its contents identify six chapters and a conclusion, not seven independently verified county talking points.

Chapter 2 is titled Moving the Conversation from Surveillance to Governance; the conclusion is Own the Narrative Before Someone Else Does. [1] The guide urges agencies to prepare for public opposition, explain safeguards and local results, and discuss governance rather than become stuck debating whether ALPRs are mass surveillance. Flock also publicly advertises an objection-handling playbook and ways to reframe common concerns. [1–2] Those are verifiable descriptions of vendor communications strategy, not proof that Columbia County officials followed the guide or deliberately misled anyone. This is where Edward Bernays' account of manufactured consent becomes a warning about cognitive redirection: when the framing of a discussion quietly determines which questions seem legitimate.

Governance is important. Moving immediately to audits, retention and access controls can leave the threshold question untouched: should ordinary vehicle movements be routinely collected at all? A polished account of how surveillance is governed is not, by itself, a justification for having surveillance. My criticism concerns the way these questions are ordered. Its chapter on local budget value also encourages comparisons with the cost of unresolved crime; such comparisons deserve testing against

complete lifecycle costs and genuine alternatives. Its chapters on local control and visible accountability invite specific verification: who can share, export, preserve and search the records, and who audits the auditors? [1]

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II. The Constitutional Boundary: When Public Movements Reveal Private Lives

The Fourth Amendment does not categorically prohibit automated license plate readers. The law nevertheless distinguishes between observing a vehicle on a public road and using technology to reconstruct a history of movements. The cases below do not establish a single rule governing every ALPR system; their relevance depends on the nature, duration, reach and accessibility of the records.

United States v. Knotts (1983). The Supreme Court permitted beeper-assisted observation of a vehicle traveling on public roads in the circumstances before it, but expressly reserved questions raised by pervasive, dragnet-style surveillance. A visible license plate is not itself a comprehensive movement history.

New York v. Class (1986). The Court recognized diminished privacy expectations in visible vehicle identification information. It did not determine the constitutionality of a searchable, multi-location historical database.

United States v. Maynard (2010). The D.C. Circuit reasoned that prolonged GPS tracking can reveal a pattern of life not apparent from isolated observations. The distinction between individual sightings and their combined picture is often called the mosaic theory.

United States v. Jones (2012). The Supreme Court held that attaching and using a GPS device to monitor a vehicle was a search under a physical-trespass rationale. Separate opinions addressed broader concerns about prolonged location monitoring; those concerns should not be misrepresented as the majority holding.

Carpenter v. United States (2018). The Supreme Court generally required a warrant for the historical cellphone location records at issue and explained that entering public space does not erase all Fourth Amendment protection. Cellphone location data is more continuous than typical ALPR sightings, but the decision highlights the privacy implications of assembling a detailed historical movement record.

Leaders of a Beautiful Struggle v. Baltimore Police Department (2021). The Fourth Circuit, sitting en banc, held that accessing Baltimore’s retrospective aerial-surveillance data constituted a Fourth Amendment search, and concluded that the program’s warrantless operation violated the Fourth Amendment. The system differed from roadside ALPRs, but its ability to reconstruct movements is relevant by analogy.

Chatrie v. United States (2026). On June 29, 2026, the Supreme Court held that police acquisition of the historical Google cell-phone location data at issue was a Fourth Amendment search. It left to the Fourth Circuit, in the first instance, whether the multi-step geofence warrant satisfied probable-cause and particularity requirements; the Supreme Court did not resolve suppression or hold that every geofence

warrant is invalid. The decision concerns cellphone data, not ALPRs, but confirms that acquiring historical location records can implicate constitutional privacy even when technology makes retrieval convenient. [5]

United States v. Slaybaugh (district court ruling; Eleventh Circuit appeal No. 25-14394). The district court rejected a Fourth Amendment challenge involving warrantless police access to Flock ALPR records. The record described at least 72 images from 20 cameras over approximately three weeks in January 2025. The government prevailed at that stage; it would be inaccurate to present the trial-level ruling as an appellate endorsement of every Flock deployment.

On appeal, Slaybaugh challenges the premise that separately observable public-road movements remain constitutionally insignificant when assembled into a retrospective, searchable history. That is the mosaic concern: the whole may reveal associations, routines and patterns that no isolated observation discloses. The distinction between an officer seeing a car at a particular time and an investigator later querying weeks of stored sightings deserves careful consideration. The Eleventh Circuit heard oral argument July 29, 2026. Reporting on the hearing described judges questioning whether the system's historical recall exceeds what an ordinary person would expect from traditional police observation. Judicial questions are not findings, and no appellate outcome is assumed here. [12–14]

Schmidt v. City of Norfolk. A federal district court also ruled against a Fourth Amendment challenge to an ALPR program. That contrary decision illustrates that courts differ in how they assess the scope and intrusiveness of vehicle-location databases. It should be read alongside Kyle, with attention to the actual facts, record and procedural posture. [6]

United States v. Kyle (N.D. Okla., October 1, 2026). In a 38-page opinion, U.S. District Judge Sara E. Hill granted Melisa Susan Kyle's motion to suppress. A deputy had searched Flock and VehicleManager ALPR systems without a warrant or probable cause, obtaining more than 50 records of a vehicle's whereabouts across approximately one month and multiple states. The court held that this retrospective inquiry intruded upon a reasonable expectation of privacy in the whole of a person's physical movements and therefore constituted a Fourth Amendment search. It separately found that the deputy unlawfully prolonged the ensuing traffic stop. The suppression order rested on both grounds. [16–17]

Why Kyle matters to the mosaic argument. The constitutional question was not whether a motorist could be seen on an individual public road. It was whether a government officer could retrieve and combine a substantial historical record of where that motorist had traveled without first obtaining judicial authorization. The court analyzed the difference between discrete observations and their cumulative capacity to reconstruct movements, drawing on Carpenter and the Supreme Court's 2026 Chatrie decision. Unlike analogies involving GPS devices or aerial surveillance, Kyle directly evaluated a search of Flock-related ALPR records. That factual proximity makes it especially relevant to questions about database retention, retrospective querying, sharing and oversight in Columbia County. [16–17]

Limits of the ruling. Kyle is a federal district-court decision, not a Supreme Court or appellate rule that all ALPR installations are unconstitutional. Other courts, including the Slaybaugh district court, have upheld challenged ALPR searches. Kyle also involved a particular month-long, multi-state search and a

separate traffic-stop violation; those facts cannot automatically be assigned to Columbia County. Its significance is a concrete judicial example of how the accumulation and later search of otherwise public sightings can trigger Fourth Amendment protection. [16–17]

None of these cases makes every Flock search automatically unconstitutional. Their combined lesson is narrower and more useful: the scale, persistence, historical reach, sharing and searchability of location information matter. A single sighting near a medical office, place of worship, union meeting or political gathering may reveal little; repeated sightings may expose a sensitive pattern. Columbia County's actual coverage, retention, access permissions and sharing arrangements require verification. New York Constitution Article I, section 12 deserves independent examination as well. The civic question is separate from the legal one: even if a system is permitted, do its demonstrated public-safety benefits justify routine, searchable records of residents' movements? This is where slavitude becomes a warning about governance, not a judicial finding: powers can become ordinary through repetition until citizens stop asking why they were granted. Constitutional permission is not an obligation to install or retain a technology.

IV. Columbia County: What We Know and What We Must Still Establish

Columbia County's Sheriff's Office operates a public transparency portal describing ALPR policy, usage statistics, retention and a public search audit. It says alerts are investigative leads, not independent grounds for enforcement. This disclosure matters and should be acknowledged. [8] A published account of the September 9, 2026 Board meeting reports Sheriff Jackie Salvatore describing grant-funded cameras and case-number requirements. It also records New Lebanon's resolution opposing the cameras. These are reported meeting statements, not independently audited operational findings. [8] The Board and the public should obtain the exact purchasing authority, signed agreements, camera inventory, grant allocations, ongoing costs, actual sharing settings, export and deletion exceptions, audit methods, anonymized search samples, false alerts and documented outcomes. The grant of approximately $279,000 reported in meeting accounts must not be mistaken for the price of the cameras alone. A nationwide network's potential reach must not be represented as Columbia County's proven use.

V. Public Safety Without Unexamined Permanence

A plate sighting may help recover a stolen vehicle, locate an endangered person or develop a legitimate lead. Those benefits are real possibilities; the local results must be demonstrated rather than assumed. A lead is not a conviction, and a handful of compelling cases is not proof of reduced crime. Cybersecurity testing is not the same as independent review of authorized searches. My policy preference is lawful discontinuation and removal of the Flock cameras. I ask the Board to set a public review timetable and identify the officials with legal authority over the equipment and agreements. At a minimum, I ask for a pause on expansion, a publicly defined independent review, and a transparent decision on continuation, restrictions or termination. The county should compare targeted investigations and other public-safety measures against the full costs and privacy consequences of routine plate collection. Contractual authority, agency powers and any municipal permissions must be examined before proposing a removal mechanism. We should not have to wait for a proven abuse before asking whether a governmental power needed to become routine.

VI. Sheep, Geese and the Difference Between Obedience and Synergy

Two images of a flock come to mind. The first is sheep. The word sheeple is deliberately uncomfortable: it describes the habit of following, obeying and repeating without examining. The danger is not that people lack intelligence. It is that intelligent people can grow accustomed to surrendering the exercise of it. That danger belongs to opponents and supporters of Flock alike. A flock that never questions its direction does not need chains. Habit becomes its restraint. That is what I call slavitude: a warning about conditioned obedience—the gradual normalization of authority that nobody pauses to question.

Now consider geese. In 1970, P. B. S. Lissaman and C. A. Shollenberger published Formation Flight of Birds in Science. Their aerodynamic model estimated that 25 birds in formation could theoretically extend their range by about 70 percent compared with one bird alone. This was a theoretical model, not a field measurement of 25 geese. [9] The formation-flight model offers one illustration of synergy: the arrangement of a system can change what its members accomplish together. The historical contest between direct current and alternating current offers another, distinct example. Edison promoted DC, while Tesla’s work and Westinghouse’s commercial development helped advance AC distribution. The lesson is not that electrical engineering settles a constitutional debate. It is that examining how a system is designed, rather than accepting what is familiar, can reveal different possibilities. Synergy requires cooperation without surrendering independent judgment. There is a symbolic parallel in county government: people have distinct responsibilities, and collaboration does not require identical votes. It is a metaphor, not a scientific proposition about government. Synergy is not everyone thinking alike. It is people maintaining independent judgment while working toward a shared public good. The sheep follow because the flock moves. The geese illustrate cooperation without surrender. One image warns against obedience without examination; the other suggests the possibilities of independent minds acting together.

VII. The Choice We Leave Behind

Plato’s allegory of the cave offers another warning about the difficulty of challenging what has become familiar. Those who have known only shadows may resist someone who returns to question their understanding of reality. The lesson is not that every dissenter is right or every critic is blind. It is that unfamiliar arguments deserve examination on their merits, especially when they unsettle comfortable assumptions. I want to recognize New Lebanon Town Supervisor Tistrya Houghtling and Hudson Fourth Ward Supervisor Linda Mussmann for their willingness to engage this difficult conversation. New Lebanon’s Town Board unanimously adopted a resolution opposing Flock cameras on town property in September 2026. That documented action deserves acknowledgment. My appreciation for Supervisor Mussmann reflects her engagement in civic debate. Neither recognition requires agreement with every position they hold. Courage in public life begins with the willingness to question a familiar course, listen to opposition, and make an accountable decision. Today’s officials will not serve forever. Technology, permissions and priorities may change. The question is therefore not simply whether current leaders have good intentions, but whether the public wishes to normalize a system whose future uses it cannot fully foresee. I ask the Board to examine the full evidence, disclose the actual local safeguards and costs, consider the lawful path to discontinuation, and give less intrusive alternatives a genuine hearing. Respect for law enforcement does not require agreement with every investigative tool. Respect for the Constitution does not require waiting for a court to prohibit a practice before reconsidering it. We do not need supervisors who think alike. We need supervisors who are willing to think independently. Let us choose synergy over slavitude. Let us go farther together without leaving our freedoms behind.

Respectfully,

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